

24STCV28848 24STCV28848

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-27

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Case Number: 24STCV28848 Hearing Date: July 27, 2026 Dept: 529

LINDA FOK VS CHICKEN NOW MONTEBELLO, LLC, ET AL.

MOTION

FOR ENTRY OF DEFAULT AGAINST DEFENDANT CHICKEN NOW MONTEBELLO

Date

of Hearing: July 27, 2026 Trial Date: None

set

Department: 529 Case No.: 24STCV28848

Moving

Party: Plaintiff Linda Fok

Responding

Party: No opposition

BACKGROUND

On November 4, 2024, Plaintiff Linda Fok filed a complaint against Defendants Chicken Now Montebello, LLC dba Chicken Now, Tammy Lee, and Spinoso Real Estate Group DLS, LLC for intentional infliction of emotional distress, negligence, violation of Unruh Civil Rights Act (Civ. Code §§51, 52), negligent violation of statutory duty, premises liability and false imprisonment.

On October 15, 2025, Plaintiff dismissed

Defendant Tammy Lee. Plaintiff also dismissed Defendant Spinoso Real Estate

Group DLS, LLC on December 22, 2025.

Plaintiff named Bridge Group Investments

II LLC as Doe 4, Professional Security Consultants as Doe 3, and Centennial Real Estate Management, LLC as Doe 2.

[TENTATIVE]

RULING

Plaintiff Linda Fok's Motion for Entry of Default Against

Defendant Chicken Now Montebello is DENIED.

DISCUSSION

Plaintiff Linda Fok moves this court for an order entering the default of Chicken Now Montebello, LLC, dba Chicken Now ("Chicken Now"), or, in the alternative, directing the Clerk of the Court to enter that default.

Plaintiff makes the motion on the grounds Chicken Now has failed to answer or otherwise respond within the time allowed by law. Plaintiff contends it has applied to the Clerk for entry of Chicken Now's default more than once; however, it keeps getting denied and the most recent rejection rests on a defect Plaintiff cannot cure, because the individual who accepted service on behalf of Chicken Now represented that he was authorized to accept service yet refused to provide his name or any title beyond "Manager."

The court DENIES the motion. The Notice of Rejection provides "**Other - Proof of (Statement of Damage CIV-050) 3/19/26: #1c-Provide "full name" or (5) physical descriptors required (Age; race; sex; height; weight). Correct proof of service. Submit updated Request for Default after rejection." (emphasis added.) The POS can include physical descriptors if the name was not provided. Plaintiff must seek entry of default through the proper channels.